

TRIAL AND ERROR

LDF's decision to a probe allegations against Chennithala backfires as the Congress president accuses it of being a Marxist ploy to conceal corruption charges against a few of its workers

Photographs by SHANKAR



BOOKED: Sajith in police custody (left)



■ By M.G. Radhakrishnan

Two years back, it was the most sensational murder case in Kerala. On a rainy afternoon in July 2005, on National Highway 47 near Alappuzha, a speeding truck had a head-on collision with a red Qualis coming from the opposite direction. Three of the passengers in the car, including the driver, died on the spot, while two others sustained grievous injuries. The mishap was initially seen as just another accident, but a few days later the police revealed that the "accident" was actually a pre-planned murder. It was organised to kill T.G. Ramesh, proprietor of a local money-lending firm Everest. He was among the three to have died in the car crash. The murder was organised by promoters of another local money-lending firm Southern Himalaya Chitties. There was fierce rivalry between the owners of the two firms and the hostility got aggravated after Ramesh, who was an employee of the highly successful Himalaya group, resigned and set up Everest, which emerged as a major competitor. The police subsequently arrested N.S. Sajith and K.N. Binish, proprietors of the Himalaya group along with those who were hired for the operation.

Now, two years on, when the trial in the murder case is well overdue, a political storm has started building up

"I am ready to face inquiry. But it is politically motivated to divert attention." RAMESH CHENNITHALA, KPCC PRESIDENT

over the issue. The controversy erupted when the Left Democratic Front (LDF) Government ordered a probe into the charges made against Kerala Pradesh Congress Committee (KPCC) President Ramesh Chennithala that he had taken bribe from Himalaya Charitable Trust to settle the murder cases registered against its promoters. Announcing the inquiry, state Home Minister Kodayeri Balakrishnan said that the decision was prompted by newspaper reports quoting Himalaya's former legal adviser and now a rival V.A. Hakeem, reiterating the charges he made against Chennithala two years ago. Hakeem, who is the convener of the Action Council formed to expedite investigation in the multiple murder case, again brought up the charges he had earlier made against Chennithala when he had fallen out with the Himalaya owners. The lawyer alleged that Himalaya proprietors had paid Rs 2 crore as the first installment of a Rs 10-crore bribe

to Chennithala to get certain favours from him. One, they wanted him to bail them out and two, they wanted the Congress leader to arrange Rs 100 crore from the Central Government for a charitable trust that they ran. The United Democratic Front (UDF) was in power when the case was registered.

According to Hakeem, the transaction took place in a hotel room. "Rs 50 lakh was paid to Chennithala at Taj Residency Hotel in Ernakulam in 2003", he said, adding, "The Himalaya owners bought a building and property worth Rs 1.40 crore to give as a gift to Chennithala besides 45.36 acres of land in Tamil Nadu that cost Rs 8 crore".

This expectedly led to a political furore. The UDF accused the Government of political vendetta and said it was unlawful to order a vigilance inquiry on the basis of newspaper reports. "I am ready to face any inquiry but it clearly seems to be a political operation to divert attention from the